Actors, Science, and Rules in Environmental Governance

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Factors Shaping Actors' Behaviors

- Belief
  - Deep core belief: broadest, most stable and predominately normative.
    (e.g., liberal vs. conservative; concern for the welfare of present vs. future generation)
  - Policy core belief: moderate scope, range from normative to empirical beliefs
    (e.g., relative priority for environmental quality vs. economic development)
  - Secondary belief: narrower in scope, more empirically based
    (e.g., restrict development in urbanized areas or to restrict building on steep lots that might cause erosion)
- Belief is usually discussed at individual level, but people with similar beliefs are likely to form coalitions to promote their policy preferences.
- Belief can evolve as actors interact with each other in collaborative settings.

Factors Shaping Actors' Behaviors

- Position
  - Economic man
  - Organization man
- Cost-and-benefit

"The butt decides the head" ("屁股决定脑袋") →
one's position or interests determine their thoughts or opinions

Policy preference : a greater liking for one alternative over another or others

Factors Shaping Actors' Behaviors

- Science



- Conflicting science or disagreement on best management options are common in environmental management.
- Best available science
  - What constitutes science
  - What scientific information is available
  - An objective way of evaluating available scientific information in order to determine what is best
  - *Credible, salient, legitimate: peer-review, replication, and a thorough literature review*

Actors and Stakeholders in China's Environmental Policy Process

Party Secretary（党委书记）

- Enjoy considerable discretion on local decision-making
- Their personal preferences, career paths, and professional backgrounds can largely affect decision-making and policy implementation within their jurisdictions.
- Coordinating departments with diverse goals
  - "The environmental problem is a difficult issue, but as long as the 'big boss' steps in, it's no longer difficult." ("环保问题是老大难问题，但是只要'老大'出面，就不再难了")

Governor/Mayor（省长/市长）

- “The mayor (county magistrate, district head), as the local chief executive, should be the primary person responsible for environmental protection in this administrative region.”
  - Environmental Protection Target Responsibility System (环保目标责任书)
  - Shutting down polluting firms
  - Budgeting for environmental protection

Holding Joint Responsibility

- Measures for the Accountability of Party and Government Leaders for Damage to the Ecological Environment (for Trial Implementation) (2015)



Article 3

- The local Party committees and governments at various levels shall assume the overall responsibilities for the conservation of the local ecological environment and resources, the **major leaders** of the Party committees and governments shall assume the **primary responsibilities** and **other relevant leaders** shall assume the **corresponding responsibilities** within the scope of their functions.

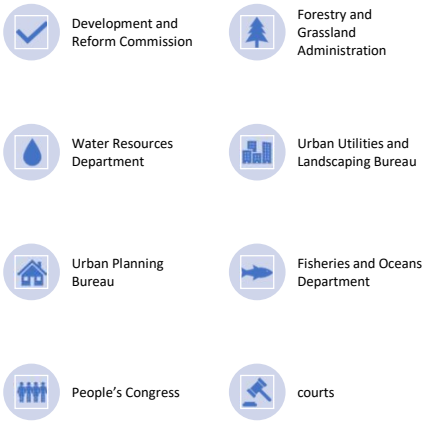
Environmental Protection Bureau (EPBs)

- From a weak agency to a stronger one
  - Its personnel and financial arrangement are subject to the direction of corresponding local government.
  - Insufficient financial budget
  - Insufficient professional personnel
    - "A significant factor constraining our work is the shortage of manpower; many tasks cannot find people to do them."
      ("人手不够是制约我们工作的很大因素，很多事情找不到人干。")

	Environmental Agency	Commerce Agency
Municipal level	31 civil servants	--
District level	56 civil servants in 6 district <10 civil servants for each	~200 civil servants for each

Other Key Actors

- Governmental Actors

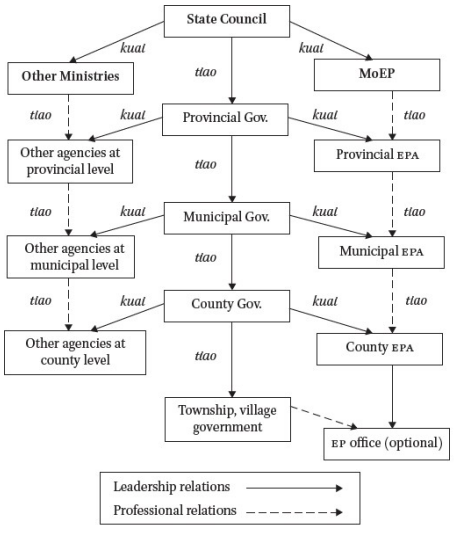


- Societal Actors
  - Enterprises or other polluting entities
  - Citizens
  - NGOs

Basic Rules and Structure of Environmental Governance in China

Tiao-kuai Guanxi (条块关系)

- Tiao (vertical functional line): vertical line between central and local functional organs
- Kuai (horizontal geographic line): horizontal line between a functional organ and its territorial level of government
- Two types of relationship:
  - Leadership relationship: territorial local government controls the personnel financial budget and material resources of functional agencies.
  - Professional relationship: superior agencies supervise the daily affairs of agencies at lower levels in carrying out their defined function
- Kuai-based management system: leadership relations are normally superior to professional relations.



Vertical Environmental Management

- Guidelines on the Pilot Program of Vertical Management Reform of Environmental Monitoring Inspection and Law Enforcement below the Provincial Level《关于省以下环保机构监测监察执法垂直管理制度改革试点工作的指导意见》（2016）
- Pilots in 2016: Hebei, Shanghai, Jiangsu, Fujian, Shandong, Henan, Hubei, Guangdong, Chongqing, Guizhou, Shaanxi, Qinghai
- Nationwide reform since 2017

- Centralizing in Environmental Monitoring
- Centralizing Environmental Inspection
- Centralizing Environmental Management System
- Decentralizing Environmental Enforcement System

Wrap Up: Vertical Environmental Management

- Vertical management system, the agencies are **directly controlled by their functional superior agencies**.
- Superior agencies not only supervises their subordinated agencies on professional affairs, but also take charge of personnel, budgetary, and material resources that are formerly retained by local governments.
- Three essential elements of vertical environmental reform:
  - **Institutional structure**: municipal EPBs shall be under **dual leadership** in which provincial EPBs play a dominant role while territorial governments play an ancillary role; EPBs at the county level will be no longer an authorized agency per se, but a branch dispatched and directly controlled by municipal EPBs;
  - **Vertical Management of Environmental Monitoring and Inspection**: the functions of EM and EI previously associated with municipal and county EPBs shall be centralized at the provincial level;
  - **Capacity building for law enforcement at and below municipal level**, including provision of equipment and professional training, integration into formal bureaucracy and legal empowerment, etc.

Environnemental Protection Inspection (环保督查/察)

- Environmental Protection Supervision Centers: North, Eastern, Southern, Northwest, Southwest, and Northeast (2006)
  - The centers supervise environmental law enforcement by local governments on behalf of the central authority
  - Semi-governmental organization
- Inspection Bureau, MEE (2017)
  - Central Inspection on Eco-Environmental Protection (2015)
  - Provisions on Central Ecological and Environmental Protection Inspection (2019)
  - Inspection Measures for Ecological and Environmental Protection (2021)

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